



File No.: EXP202401115

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR RECOGNITION OF
RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 30, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ASILO DE ANCIANOS SANTO DOMINGO Y SANTA ELOISA (hereinafter, ASILO DE ANCIANOS), through the agreement that is transcribed:

<<

File No.: EXP202401115

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On November 23, 2023, a complaint was filed with the Spanish Agency for Data Protection for a possible infringement attributable to ASILO DE ANCIANOS SANTO DOMINGO Y SANTA ELOISA with NIF G47012398 (hereinafter, ASILO DE ANCIANOS).

The facts brought to the attention of this authority are as follows:

The complainant states that when emails are sent from the residence's email address, they are sent en masse to all relatives of the residents, exposing their email addresses and names. This fact occurs repeatedly, and it is added that, despite having communicated this several times to the residence, the emails continue to arrive in the same manner.

Along with the notification, the following is provided:

- Email dated November 17, 2023, titled "changes and guidelines regarding visits," sent from "****EMAIL.1" and addressed to 51 recipients, with their email addresses visible, and signed by the management of the Centro Fundación Santo Domingo y Santa Eloísa.
- Email dated October 6, 2023, titled "vaccination and flu," sent from "****EMAIL.1" and addressed to 50 recipients, with their email addresses visible, and signed by the management of the Centro Fundación Santo Domingo y Santa Eloísa.
- Email dated September 1, 2023, titled "new director," sent from "****EMAIL.1" and addressed to 23 recipients, with their email addresses visible, and signed by the management of the Centro Fundación Santo Domingo y Santa Eloísa.
- Email dated December 23, 2021, titled "additional information," sent from "****EMAIL.1" and addressed to 58 recipients, with their email addresses visible, and signed by the management of the Centro Fundación Santo Domingo y Santa Eloísa.
- Email dated December 22, 2021, titled "happy holidays," sent from "****EMAIL.1" and addressed to 55 recipients, with their email addresses visible, and signed by the management of the Centro Fundación Santo Domingo y Santa Eloísa.
- Email dated December 7, 2021, titled "important," sent from "****EMAIL.1" and addressed to 54 recipients, with their email addresses visible, and signed by the management of the Centro Fundación Santo Domingo y Santa Eloísa.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party, so that it could proceed to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on January 22, 2024, as noted in the acknowledgment of receipt in the file.

No response has been received to this transfer letter.

THIRD: On February 23, 2024, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the entity ASILO DE ANCIANOS is a small company established in 1974, with a turnover of (...) euros in 2022.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/17

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringements committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it will lapse, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

III

Preliminary Issues

Article 4 of the GDPR, titled “Definitions,” establishes in paragraphs 1, 2, and 7:

“For the purposes of this Regulation, the following definitions shall apply:

1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) ‘processing’: any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction; (...)

7) ‘controller’ or ‘data controller’: the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law (...)

In the present case, in accordance with the provisions of Article 4.1 and 2 of the GDPR, there is evidence of the processing of personal data, since ASILO DE ANCIANOS carries out, among other processing activities, the collection, recording, and storage of the following personal data of natural persons, such as: name and surname, email address, among others.

The party being complained against carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

For its part, Article 4, paragraph 12 of the GDPR broadly defines “personal data breaches” (hereinafter, security breach) as “all breaches of security that lead to the accidental or unlawful destruction, loss, alteration of, or unauthorized disclosure of, or access to personal data transmitted, stored, or otherwise processed.”

In this case, there is a personal data breach under the circumstances mentioned above, categorized as a confidentiality breach, as a result of the sending of several emails on December 7, 2021, December 22, 2021, December 23, 2021, September 1, 2023, October 6, 2023, and November 17, 2023.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data is guaranteed in paragraph 1.f) of Article 5 of the GDPR. Meanwhile, the security of personal data is regulated in Article 32 of the GDPR, which governs the security of processing.

IV

Obligation Breached - Principle of Integrity and Confidentiality

Letter f) of Article 5.1 of the GDPR states:

“1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures (‘integrity and confidentiality’).”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/17

In the present case, it is established that a personal data breach has occurred, categorized as a confidentiality breach, due to several emails being sent to the claimant, which included the personal data of more individuals, as these emails were sent without the blind carbon copy functionality, meaning that all recipients of these emails were visible.

As a consequence of sending these emails, unauthorized communication of the email addresses of all individuals appearing as recipients of the email has occurred.

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the known facts could constitute an infringement, attributable to ASILO DE ANCIANOS, for violation of Article 5.1.f) of the GDPR.

V

Classification of the infringement of Article 5.1.f) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the sole purpose of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of

Regulation (EU) 2016/679."

VI

Proposal for sanction for the infringement of Article 5.1.f) of the GDPR

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/17

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/17

For its part, Article 76 "Sanctions and corrective measures" of the LOPDGDD provides:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the

infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

In this case, considering the severity of the possible infringements, especially taking into account the consequences that their commission causes to the claiming party, the imposition of a fine, in addition to the adoption of measures, where applicable, would be appropriate. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the condition of the company and the business volume of ASILO DE ANCIANOS is considered in advance.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 5.1.f) of the GDPR, allows for the initial setting of an administrative fine of 600.00 euros.

VII

Unfulfilled obligation. Security of processing

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/17

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. When assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

In the present case, it has been established that, when sending the emails, ASILO DE ANCIANOS had not foreseen reasonable security measures based on the possible estimated risks referred to in Article 32 of the GDPR. Therefore, in accordance with the evidence available in this initiation agreement of

the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to ASILO DE ANCIANOS, for violation of Article 32 of the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/17

VIII

Classification of the infringement of Article 32 of the GDPR

Article 83.4 of the GDPR classifies the violation of the following article as an administrative infringement, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the sole purpose of the statute of limitations, Article 73 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and will be subject to a two-year statute of limitations, which involve a substantial violation of the articles mentioned therein, and in particular, the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679."

IX

Proposal for sanction for the infringement of Article 32 of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under

Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.

11/17

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) To have, when not mandatory, a data protection officer.

h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In this case, considering the severity of the possible infringements, especially taking into account the consequences that their commission causes to the claiming party, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the condition of a small business and the turnover of ASILO DE ANCIANOS is considered beforehand.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 32 of the GDPR, allows for an initial administrative fine of 400.00 euros.

X

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.f) of the GDPR and Article 32 of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”

Thus, the responsible entity may be required to adjust its actions to the personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the alleged infringement committed and the facts that could give rise to this possible violation of personal data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, the resolution adopted may require ASILO DE ANCIANOS to, within 1 month from the date of effectiveness of the resolution concluding this

procedure, adopt and demonstrate to this Agency that it has taken the necessary technical and organizational measures to prevent the sending of emails with more than one recipient, without using the "BCC" (blind carbon copy) functionality.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may motivate such conduct to initiate a further administrative sanctioning procedure.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts from the obligation to adopt the necessary measures to cease the conduct or correct the effects of the infringement committed and to demonstrate to this AEPD compliance with that obligation.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against ASILO DE ANCIANOS SANTO DOMINGO Y SANTA ELOISA, with NIF G47012398, for:

- for the alleged infringement of Article 5.1.f) of the GDPR classified in Article 83.5 of the GDPR

- for the alleged infringement of Article 32 of the GDPR classified in Article 83.4 of the GDPR,

SECOND: TO APPOINT as instructor A.A.A. and, as secretary, B.B.B., indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/17

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the claim filed by the claiming party and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be

- For the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of said regulation, an administrative fine of 600.00 euros

- For the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of said regulation, an administrative fine of 400.00 euros

FIFTH: TO NOTIFY this agreement to ASILO DE ANCIANOS SANTO DOMINGO Y SANTA ELOISA, with NIF G47012398, granting a hearing period of ten working days for it to submit allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 800.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 800.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made

within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the sanction would be set at 600.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction. For these purposes, in the event of opting for any of them, it must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
14/17

o waives any action or administrative appeal against the sanction, indicating which of the two reductions it accepts or if it accepts both.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (800.00 euros or 600.00 euros), it must make the payment by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it adheres.

Furthermore, it must send the proof of payment to the General Inspection Subdirectorate along with the express communication of the withdrawal or waiver of any action or administrative appeal against the sanction in order to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

1479-230724

Mar España Martí

Director of the Spanish Agency for Data Protection

>>

SECOND: On November 8, 2024, ASILO DE ANCIANOS proceeded to pay the sanction in the amount of 600.00 euros, making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: ASILO DE ANCIANOS has expressly waived any action or administrative appeal against the sanction.

FOURTH: In the initiation agreement transcribed above, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the imposition of the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

III

Voluntary payment and acknowledgment of responsibility

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/17

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 600.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

After the notification of the aforementioned initiation agreement, ASILO DE ANCIANOS has proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided for and expressly waiving any action or appeal in the administrative route.

It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their form of initiation. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and those arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total amount of 1,000.00 euros.

After ASILO DE ANCIANOS SANTO DOMINGO Y SANTA ELOISA has proceeded with the prompt payment and acknowledgment of responsibility, it is hereby resolved, pursuant to Article 85 of the LPACAP, to reduce the total mentioned by 40%, which results in the final amount of 600.00 euros.

SECOND: TO DECLARE the termination of procedure EXP202401115, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER ASILO DE ANCIANOS SANTO DOMINGO Y SANTA ELOISA to notify the Agency within 1 month from the date this resolution becomes firm and enforceable, of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution.

FOURTH: TO NOTIFY this resolution to ASILO DE ANCIANOS SANTO DOMINGO Y SANTA ELOISA.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility to the withdrawal or waiver of any action or appeal in the administrative route, this authority accepts the waiver expressly stated by ASILO DE ANCIANOS SANTO DOMINGO Y SANTA ELOISA, thus precluding the filing of an optional appeal for reconsideration against this resolution, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

Consequently, taking into account the provisions of Article 90 of the LPACAP, since no administrative appeal can be filed due to the express waiver, this resolution will be firm and fully enforceable from its notification.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the firm resolution may be provisionally suspended in the administrative route if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

1259-180225

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy of the position of Presidency and Deputy Presidency

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es